

25LBCV01973 25LBCV01973

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Defendant propounded RFAs on Plaintiff on 11/19/25. Plaintiff served unverified responses containing objections and substantive responses on 1/13/26. Defendant moves to have the RFAs deemed admitted, contending the fact that they were unverified rendered them “tantamount to no responses at all.” Additionally, to the extent Plaintiff chooses to respond prior to the hearing in an attempt to circumvent an order deeming the responses admitted, Defendant contends all objections have been waived, and responses must be objection-free. Defendant moves pursuant to CCP §2033.280.

Per Blue Ridge Ins. Co. v. Superior Court (1988) 202 Cal.App.3d 339, 344-345, the portion of discovery responses that consists of objections need not be verified; it need only be signed by the attorney of record for the responding party, which the responses herein were. Only the portion of the responses that includes substantive information needs to be verified.

Food 4 Less Supermarkets, Inc. v. Superior Court (1995) 40 Cal.App.4th 651 is instructive. The plaintiff therein filed a motion to compel further responses, arguing that certain objections asserted by the defendants in their responses were improper, and also that the responses were unverified. The trial court treated the motion as one to compel initial responses and granted it in light of the lack of verifications. The trial court held that lack of verifications rendered the responses “tantamount to no response at all,” such that all objections were waived.

The court of appeals reversed. It held:

What then is the appropriate procedure if a party tenders a hybrid response containing objections and fact-specific responses? Given our analysis, there is no need to verify that portion of the response containing the objections. Thus, if the response is served within the statutory time period, that portion of the response must be considered timely notwithstanding the lack of verification. The omission of the verification in the portion of the response containing fact-specific responses merely renders that portion of the response untimely and therefore only creates a right to move for orders and sanctions under subdivision (k) of section 2031 as to those responses but does not result in a waiver of the objections made. The only situation in which lack of verification could both render the response untimely and result in a waiver of objections under subdivision (k) is when the initial unverified response contains no objections. And in a different factual vein, subdivision (k) could result in a waiver of objections if the party fails to file any response within the statutory time period. Neither of the latter two situations is present here.

Applying these principles to the present proceeding, we conclude that the trial court proceeded contrary to law. Defendants did serve their responses within the statutory time period. The lack of verification did not render their objections untimely. The trial court therefore erred in finding defendants had waived their objections and in imposing monetary sanctions upon defendants. The trial court should have instead ruled upon the merits of the motion plaintiff had actually filed seeking to compel further responses. We will issue a peremptory writ of mandate requiring the trial court to do so.

The court of appeals essentially held that where, as here, the responding party provides responses that consist of both objections and substantive responses, the proper motion to be filed is a motion to compel further responses, not a motion to compel initial responses. By analogy, the proper motion in this case would have been a motion to compel further responses to RFAs, not a motion to deem the RFAs admitted. Such motion is governed by CCP §2033.290, not §2033.280. Additionally, to the extent Defendant argues objections have been waived due to the lack of verification, this contention is also contrary to the above opinion.

Notably, Defendant appears to realize this is the case, as Defendant filed a separate statement with the motion. Defendant failed, however, to move under §2033.290, and failed to file a meet and confer declaration with the moving papers.

The motion is therefore denied. No sanctions are imposed in light of the denial.

Defendant is ordered to give notice.